Getting calls from collectors? Here's what you need to know.

High-interest lenders and collection agencies can be pushy. You have rights, and you don't have to deal with the pressure alone.

You don't have to talk to them on the spot

- You don't have to answer every call, and you never have to agree to a payment over the phone.
- Don't give out banking details or agree to a "deal" just to make the call end. Pressure is the tactic.
- You can ask them to send everything **in writing**.

> ***What you can say:*** *"I'm working with DebtSolvers Canada on my debts. Please send anything you need to me in writing." Then hang up.*

Collectors have rules they must follow

Every province has a law for collection agencies. The details vary, but in general they **cannot**:

Harass you. No threats, abusive language or calling over and over within a short time.

Call at any hour. Calls are limited to set daytime hours, with tighter limits on Sundays and holidays.

Pressure your family, friends or employer. They can't discuss your debt with them (beyond limited exceptions, like confirming your job).

Mislead you. They can't lie about what you owe or threaten things they can't legally do.

If a collector crosses the line, write down the date, time and what was said, and tell us. You can also complain to your province's consumer protection office.

Once your consumer proposal is filed, the calls stop. Filing with a Licensed Insolvency Trustee creates a legal "stay of proceedings." Most unsecured creditors and collectors must then stop calling you, stop collection, and stop lawsuits and wage garnishments. They deal with the trustee instead.

Never ignore court papers. Ignoring calls is different from ignoring the law. If you get a **Statement of Claim**, a court notice, or a garnishment letter, **send it to us the same day**. Court papers have deadlines, and missing one can lead to a judgment, wage garnishment or a frozen bank account.

Until your file is filed

- Forward any letters, emails or texts from creditors to us.
- Keep your stop payments in place, as discussed with your advisor.
- Questions or a call that worried you? Reach out to us anytime.

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General information only, not legal advice. Collection rules differ by province. The stay of proceedings applies once a proposal or bankruptcy is filed by a Licensed Insolvency Trustee; some debts (e.g. secured loans) are treated differently.